

# PROFESSIONAL SERVICES AGREEMENT

**Contract ID:** PSA-2026-00412

**Effective Date:** June 15, 2026

**Parties:**

- **Client:** Example Corp (“Company”)
  - **Provider:** AnyCompany LLC (“Provider”)
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## 1. SCOPE OF SERVICES

Provider shall deliver cloud migration consulting services including assessment, planning, execution, and post-migration support for Company’s on-premise infrastructure to AWS cloud environment.

### 1.1 Deliverables

- Infrastructure assessment report
- Migration plan document
- Execution of migration for up to 50 servers
- 30 days post-migration monitoring

### 1.2 Timeline

Work shall commence within 10 business days of contract execution and be completed within 6 months.

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## 2. COMPENSATION AND PAYMENT TERMS

### 2.1 Total Contract Value

The total fixed fee for services is **\$475,000 USD**.

### 2.2 Payment Schedule

- 50% upon contract signing (\$237,500)
- 50% upon project completion (\$237,500)

### 2.3 Late Payment

Late payments shall incur interest at a rate of **18% per annum**, compounded monthly.

### 2.4 Expenses

Provider may incur reasonable expenses up to \$50,000 without prior written approval from Company.

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## 3. TERM AND TERMINATION

### 3.1 Term

This agreement shall remain in effect for **3 years** from the Effective Date unless terminated earlier.

### 3.2 Termination for Convenience

Either party may terminate this agreement with **7 days** written notice.

### 3.3 Termination for Cause

In the event of material breach, the non-breaching party may terminate immediately without cure period.

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## 4. INTELLECTUAL PROPERTY

### 4.1 Ownership

All work product, deliverables, tools, scripts, and methodologies developed during the engagement shall become the **exclusive property of Provider**.

### 4.2 License

Company is granted a non-exclusive, non-transferable license to use deliverables for internal purposes only. License is revocable at Provider's sole discretion.

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## 5. CONFIDENTIALITY

### 5.1 Definition

Confidential Information includes all business, technical, and financial information exchanged between the parties.

### 5.2 Duration

Confidentiality obligations shall survive for **1 year** following termination of this agreement.

### 5.3 Exceptions

Provider may share Company's confidential information with its subcontractors without prior written consent from Company.

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## 6. LIABILITY AND INDEMNIFICATION

### 6.1 Limitation of Liability

Provider's total aggregate liability under this agreement shall not exceed **\$10,000** regardless of the nature of the claim.

### 6.2 Indemnification

Company shall indemnify, defend, and hold harmless Provider against all claims, damages, and expenses arising from or related to this agreement, including claims caused by Provider's own negligence.

### 6.3 Consequential Damages

Neither party waives its right to consequential, incidental, or punitive damages.

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## 7. DATA PROTECTION AND SECURITY

### 7.1 Data Handling

Provider shall implement "commercially reasonable" security measures to protect Company data during the migration process.

### 7.2 Data Breach Notification

In the event of a data breach, Provider shall notify Company within **60 business days** of discovery.

### 7.3 Data Retention

Provider may retain copies of all Company data indefinitely for its own business purposes after contract termination.

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## 8. INSURANCE

Provider represents that it maintains general liability insurance but is not required to provide proof of coverage or maintain specific minimum coverage amounts.

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## 9. DISPUTE RESOLUTION

### 9.1 Governing Law

This agreement shall be governed by the laws of the **Provider's home jurisdiction** (State of Delaware).

## 9.2 Venue

All disputes shall be resolved exclusively through **binding arbitration** administered by an arbitrator selected solely by Provider.

## 9.3 Fees

Company shall bear all arbitration costs and Provider's legal fees regardless of outcome.

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# 10. MISCELLANEOUS

## 10.1 Assignment

Provider may freely assign this agreement or subcontract any portion of the work without Company's consent.

## 10.2 Amendments

This agreement may be amended by Provider with 5 days written notice to Company. Company's continued use of services constitutes acceptance.

## 10.3 Force Majeure

Provider may suspend performance for any reason it deems a force majeure event, with no obligation to resume services or refund payments.

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# SIGNATURES

### Example Corp

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

### AnyCompany LLC

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

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*This document is intended as a sample contract for review pipeline testing purposes.*